1st Quiz
Persons & Family Relations
Atty. Crisostomo A. Uribe

Part One
True of False
Consider the statement true only when it is absolutely true.

1. The degree of legal separation shall entitle the spouses to live separately from each other as the marriage bond shall be severed. **FALSE**
2. All marriages solemnized outside the Philippines, in accordance with the laws in force in the country where they were solemnized and valid there as such shall also be valid in the country. **FALSE**
3. An action for legal separation cannot be filed except within one year from and after the date on which the plaintiff became cognizant of the cause and within five years from and after the date when such cause occurred. **FALSE**
4. The absolute community terminates when there is a decree of legal separation. **TRUE**
5. That which is brought to the marriage as his or her own, shall be the exclusive property of each spouse. **TRUE**
6. Children conceived or born outside a valid marriage are illegitimate. **FALSE**
7. Children conceived or born before the promulgation of judgment of annulment or absolute nullity of the marriage under Article 36 shall be considered legitimate. **TRUE**
8. Concealment by the wife of the fact that at the time of the marriage she was pregnant constitutes fraud. **FALSE**
9. Bigamous or polygamous marriages are void. **FALSE**
10. Marriages between stepbrothers and stepsisters are void. **FALSE**

Part Two
Multiple Choice. Choose the best answer. Write the letter only.

11. A marriage between 1st cousins is:
    a. Valid because they are more than 4 degrees removed from each other.
    b. Valid because they do not belong to the direct line
    c. Void because it is incestuous
    d. **Void by reason of public policy**
    e. Voidable because of a defect in consent.
12. Marriages may be solemnized by, except:
    a. **Provincial Governor, within the province;**
    b. Any priest, rabbi, imam, or minister of any church or religious sect;
    c. Any consul or vice-consul in the case provided in Article 10.
    d. Any incumbent member of the judiciary within the court's jurisdiction
    e. None of the above
13. A marriage license is required in the following:
    a. A marriage in articulo mortis between passenger or crew members of airlines.
    b. A marriage in articulo mortis between persons within the zero of military operation.
    c. **A marriage between Filipino citizens abroad solemnized by a consul.**

d. A marriage where the residence of either party is so located that there is no means of Transportation to enable such party to appear personally before the local civil registrant
e. None of the above.

14. The following marriages are void from the beginning for reasons of public policy, EXCEPT;
    a. Between second cousins
    b. Between step-parents and step-children
    c. between parents-in-law and children-in-law
    d. between uncle and niece
    e. between the adopting parent and the adopted child;
15. The effects of legal separation are the following, except:
    a. the spouses shall be entitled to live separately from each other
    b. the absolute community or the conjugal partnership shall be dissolved and liquidated
    c. the offending spouse shall be disqualified from inheriting from the innocent spouse by intestate and testamentary succession.
    d. the custody of the minor children shall be awarded to the innocent spouse, subject to the provisions of Article 213 of this Code
    e. none of the above
16. The spouse who has left the conjugal dwelling shall be prima facie presumed to have no intention of returning to the conjugal dwelling:
    a. After 90 days = 3 MOS.
    b. Immediately after leaving the conjugal dwelling
    c. After 6 months
    d. After 1 year
    e. After 5 years
17. The conjugal partnership shall be liable for all debts and obligations contracted during the marriage by the designated administrator-spouse for the benefit of the conjugal partnership of gains. In case of insufficiency of said assets, the spouse shall be liable:
    a. Solidarily
    b. jointly
    c. alternatively
    d. cumulatively
18. This shall be excluded from the community property:
    a. Property acquired during the marriage by onerous title by either spouse
    b. Property acquired before the marriage by either spouse who has legitimate descendants by a former marriage.
    c. Property acquired before the marriage by gratuitous title by either spouse
    d. Jewelry
    e. None of the above
19. This is required for a child by artificial insemination to be a legitimate child of A and B, husband and wife, respectively:
    a. the child was conceived as a result of artificial insemination of C.
    b. the child was conceived with the sperm of A.
    c. both A and B authorized the artificial insemination in a written instrument.

d. the authority or ratification of such artificial insemination may be signed after the birth of the child.
e. none of the above

20. Natividad is the widow of Mariano. Melitona is her mother. Rupert is her grandchild. Generoso is her brother. Crescente is her nephew. Who will first be compelled to give support to Melitona?
a. Melitona
b. Rupert
c. Generoso
d. Crescente
e. Mariano

2nd Quiz
Persons & Family Relatins
Atty. Crisostomo A. Uribe

Part One
True or False. Write the letter only.
Consider the statement true only when it is absolutely true.

a. Both are true
b. Both are false
c. No. 1 is true, No. 2 is false
d. No. 1 is false, No. 2 is true

1. Statements
A marriage solemnized in Makati City by Mayor of San Juan is void.
FALSE: Reason: Jurisprudence

A marriage is void if solemnized by one without authority to solemnize marriage.
FALSE: Reason: exception is good faith
Final Answer: B

2. Statements
The lack of certificate of legal capacity does not affect the validity of the marriage.
TRUE: Basis: Recio vs. Recio

The subsequent bigamous marriage shall be automatically terminated by the reappearance of the absent spouse.
FALSE: Reason: Recording of the affidavit
Final Answer: C

3. Statements
If both spouse of the subsequent marriage acted in bad faith, said marriage shall be void ab initio and all testamentary dispositions made be revoked by either spouse.
FALSE: Reason: by operation of law

Non-disclosure of a previous conviction by final judgment of the other party shall constitute fraud resulting in a voidable marriage.
FALSE: Reason: Moral turpitude
Final Answer: B

4. Statements
Concealment of sexually transmissible disease, regardless of its nature, shall constitute fraud resulting in a voidable marriage.
FALSE: Reason: should be existing at the time of the marriage

incapacity

The root cause of the psychological has to be alleged in a petition for declaration of nullity of marriage under Article 36 of the Family Code.
FALSE: Reasaon: Need not be alleged – based on jurisprudence
Final Answer: B

5. Statements
Under the present Rules on Declaration of Absolute Nullity of Marriage under Article 36 of the Family Code, expert opinion need not be alleged in the petition.
TRUE: Basis: Barcelona case

Mild characterological peculiarities, mood changes and occasional emotional outbursts cannot be considered as root cause of psychological incapacity.
TRUE: Basis: Choa vs. Choa
Final Answer: A

Part Two
Multiple Choice. Choose the best answer. Write the letter only.

6. The following marriages are void from the beginning for reasons of public policy, EXCEPT:
   a. between step-parents and step-children
   b. between parents-in-law and children-in-law
   c. between uncle and niece
   d. between the adopting parents and the adopted child;
   e. none of the above

7. This may involve a prejudicial question in the case for bigamy:
   a. legal separation
   b. annulment of the first marriage
   c. annulment of the second marriage
   d. nullity of the second marriage due to psychological incapacity
   e. none of the above

8. There is fraud which will make the marriage voidable if:
   a. Non-disclosure of a previous conviction by final judgment of the other party of a crime.
   b. Concealment by the wife of the fact that at the time of the marriage, she was pregnant.
   c. Concealment of sexually transmissible disease, if found to be serious, existing at the time of the marriage.
   d. All of the above.
   e. None of the above.

9. That the petitioner freely cohabited with the other spouse is a defense in an action for annulment of the following grounds, EXCEPT:

a. lack of parental consent
b. that the respondent was of unsound mind
c. that the respondent was physically incapable of consummating the marriage with the other
d. that the consent of petitioner was obtained by fraud
e. none of the above.

10. The following have the right to institute an action for annulment, EXCEPT:
a. the injured party, within five year after the discovery of the fraud
b. the parents of the party who was only 19 years old without parental consent, within 5 years from the time the child attains the age of 21.
c. the injured party, within five years from the time the force, intimidation or undue influence disappeared or ceased.
d. the spouse, who had no knowledge of the other's insanity, at any time before the death of either party.
e. none of the above

Quiz # 3

Part One
True or False. Write the letter only.
Consider the statement true only when it is absolutely true.

a. Both are true
b. Both are false
c. No. 1 is true, No. 2 is false
d. No. 1 is false, No. 2 is true

C
1. Adultery is a ground for legal separation TRUE
   Abandonment of petitioner by respondent for more than one year is a ground for legal separation FALSE M/O Yes.

B
2. An action for legal separation shall filed within one year from the time the innocent spouse became cognizant of the cause False
   If the husband does not actively look for the wife who left the conjugal home after her adulterous acts were discovered, there is condonation. False

B
3. The spouses shall be entitled to live separately from each other only from the time the decree of legal separation becomes final and executory. False
   The offending spouse shall be disqualified from inheriting from the innocent spouse by intestate succession if he gave cause for legal seapration T?

B
4. The marriage settlements and any modification thereof shall be in a public instrument False
   If the future spouses agree upon a regime of absolute community of property, they cannot donate to each other in their marriagesettlements more than one-fifth of their present property. False

C
5. Donations of future property shall be governed by the provisions of testamentary succession and formalities of wills True
   The community property shall consist of all the property owned by the spouses at the celebration of the marriage or acquired there after. False

MULTIPLE CHOICE

6. A petition for legal separation may be filed on any of the following grounds except:
   a. Final Judgment sentencing respondent of imprisonment of more than six years
   b. Contracting by respondent of a subsequent bigamous marriage, whether in the Philippines or Abroad.
   c. **Attempt by the respondent against the life of the petitioner; a common child, or a child of the petitioner**
   d. d.Abandonment of petitioner by respondent without justifiable cause for more than 1 year
   e. None of the Above.

7. The obligation supporting a spouse ceases after the following, except:
   a. Dissolution of the marriage by death of the spouse
   b. Declaration of nullity
   c. Annulment of marriage
   d. **Legal separation**
   e. None of the above

8. Which among the following is not a ground to revoke adonation by reason of marriage:
   a. When the marriage takes place without the consent without the consent of the parents or guardians as required by law
   b. If it is within a resolutory condition and the condition is complied with
   c. **Donations made in the marriage settlements, if the marriage is not celebrated**.
   d. Upon legal separation, the donee being the guilty spouse
   e. None of the Above

9. The property regime of the spouses married in 1999 will NOT be absolute community of property if:
   a. No marriage settlement was executed
   b. The marriage settlement is void
   c. The marriage settlement specified absolute community property
   d. **If one of the contracting parties is a surviving spouse who contracted a subsequent marriage without liquidating the community property**
   e. None of the above

10. This shall be excluded from comminuty property:
   a. Property acquired during marriage by onerous title by either spouse
   b. **Property acquired before the marriage by either spouse who has legitimate descendants by another marriage**
   c. Jewelry
   d. None of the Above

Quiz No. 4

PART 1: TRUE OR FALSE

1. Children conceived and born outside a valid marriage are illegitimate. **FALSE**

2. The action to claim legitimacy may be brought by the child during his or her lifetime and shall be transmitted to the heirs should the child die during minority or in a state of insanity. **TRUE**

3. Children conceived and born outside of wedlock may be legitimated. **TRUE**

4. The effects of legitimation shall retroact to the time of the child's birth. **TRUE**

5. Legitimation may be impugned only by those who are prejudiced in their rights within one year from the time their cause of action accrues. **FALSE**

6. The adopter must be at least sixteen years older than the person to be adopted. **FALSE**

7. When the surviving spouse or the illegitimate children of the adopted concur with the adopters, they shall divide the entire estate in equal shares, one half to be inherited by the spouse or the illegitimate children of the adopted and the other half, by the adopters. **TRUE**

8. Payment shall be made within the first five days of each corresponding month. **TRUE**

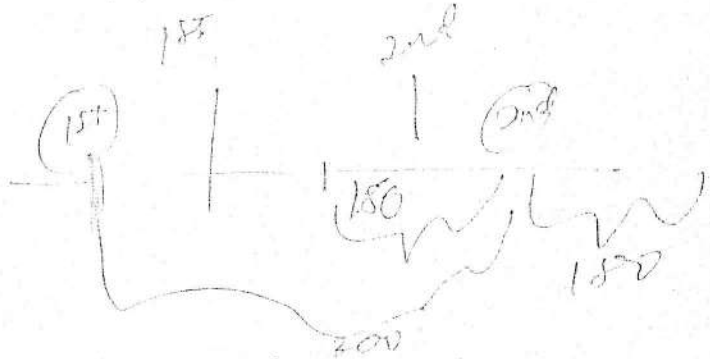
9. The person obliged to give support shall fulfil the obligation by receiving and maintaining in the family dwelling the person who has a right to receive support. **FALSE**

10. When, without the knowledge of the person obliged to give support, it is given by a stranger, the latter shall have a right to claim from the former. **FALSE**

PART TWO: MULTIPLE CHOICE. CHOOSE THE BEST ANSWER.

11. The status of the child in relation to the father or the mother and may be used to indicate paternity or maternity is known as:
a. Legitimacy
b. Paternity
c. Maternity
d. Filiation

12. A child conceived before the death of the husband [A] of B but born one month after the marriage between B and C is:
a. Legitimate child of A and B
b. Illegitimate child of A and B
c. Legitimated child of B and C



c. has not been convicted of any crime involving moral turpitude
d. emotionally and psychologically capable of caring for children
e. none of the above

19. In case of adoption, husband and wife shall exercise joint parental authority in the following cases, except:
a. if husband and wife jointly adopt
b. one spouse adopts the illegitimate child of the other
c. one spouse seeks to adopt his own illegitimate child
d. all of the above
e. none of the above

20. The following are necessary for an alien to be able to adopt, EXCEPT:
a. in a position to support and care for his children
b. of good moral character
c. has not been convicted of any crime involving moral turpitude
d. emotionally and psychologically capable of caring for children
e. none of the above.

True or False compilation

1. The degree of legal separation shall entitle the spouses to live separately from each other as the marriage bond shall be severed. **FALSE**
2. All marriages solemnized outside the Philippines, in accordance with the laws in force in the country where they were solemnized and valid there as such shall also be valid in the country. **FALSE**
3. An action for legal separation cannot be filed except within one year from and after the date on which the plaintiff became cognizant of the cause and within five years from and after the date when such cause occurred. **FALSE**
4. The absolute community terminates when there is a decree of legal separation. **TRUE**
5. That which is brought to the marriage as his or her own, shall be the exclusive property of each spouse. **TRUE**
6. Children conceived or born outside a valid marriage are illegitimate. **FALSE**
7. Children conceived or born before the promulgation of judgment of annulment or absolute nullity of the marriage under Article 36 shall be considered legitimate. **TRUE**
8. Concealment by the wife of the fact that at the time of the marriage she was pregnant constitutes fraud. **FALSE**
9. Bigamous or polygamous marriages are void. **FALSE**
10. Marriages between stepbrothers and stepsisters are void. **FALSE**
11. A marriage solemnized in Makati City by Mayor of San Juan is void. **FALSE: Reason: Jurisprudence**
12. A marriage is void if solemnized by one without authority to solemnize marriage. **FALSE: Reason: exception is good faith**
13. The lack of certificate of legal capacity does not affect the validity of the marriage. **TRUE: Basis: Recio vs. Recio**
14. The subsequent bigamous marriage shall be automatically terminated by the reappearance of the absent spouse. **FALSE: Reason: Recording of the affidavit**
15. If both spouse of the subsequent marriage acted in bad faith, said marriage shall be void ab initio and all testamentary dispositions made be revoked by either spouse. **FALSE: Reason: by operation of law**
16. Non-disclosure of a previous conviction by final judgment of the other party shall constitute fraud resulting in a voidable marriage. **FALSE: Reason: Moral turpitude**
17. Concealment of sexually transmissible disease, regardless of its nature, shall constitute fraud resulting in a voidable marriage. **FALSE: Reason: should be existing at the time of the marriage**
18. The root cause of the psychological has to be alleged in a petition for declaration of nullity of marriage under Article 36 of the Family Code. **FALSE: Reasaon: Need not be alleged – based on jurisprudence**
19. Under the present Rules on Declaration of Absolute Nullity of Marriage under Article 36 of the Family Code, expert opinion need not be alleged in the petition. **TRUE: Basis: Barcelona case**
20. Mild characterological peculiarities, mood changes and occasional emotional outbursts cannot be considered as root cause of psychological incapacity. **TRUE: Basis: Choa vs. Choa**
21. Adultery is a ground for legal separation **TRUE**
22. Abandonment of petitioner by respondent for more than one year is a ground for legal separation **FALSE**
23. An action for legal separation shall filed within one year from the time the innocent spouse became cognizant of the cause **FALSE**
24. If the husband does not actively look for the wife who left the conjugal home after her adulterous acts were discovered, there is condonation. **FALSE**
25. The spouses shall be entitled to live separately from each other only from the time the decree of legal separation becomes final and executory. **FALSE**
26. The offending spouse shall be disqualified from inheriting from the innocent spouse by intestate succession if he gave cause for legal separation **FALSE**
27. The marriage settlements and any modification thereof shall be in a public instrument **FALSE**
28. If the future spouses agree upon a regime of absolute community of property, they cannot donate to each other in their marriagesettlements more than one-fifth of their present property. **FALSE**
29. Donations of future property shall be governed by the provisions of testamentary succession and formalities of wills **TRUE**
30. The community property shall consist of all the property owned by the spouses at the celebration of the marriage or acquired there after. **FALSE**
31. Children conceived and born outside a valid marriage are illegitimate. **FALSE**
32. The action to claim legitimacy may be brought by the child during his or her lifetime and shall be transmitted to the heirs should the child die during minority or in a state of insanity. **TRUE**
33. Children conceived and born outside of wedlock may be legitimated. **TRUE**
34. The effects of legitimation shall retroact to the time of the child's birth. **TRUE**
35. Legitimation may be impugned only by those who are prejudiced in their rights within one year from the time their cause of action accrues. **FALSE**
36. The adopter must be at least sixteen years older than the person to be adopted. **FALSE**
37. When the surviving spouse or the illegitimate children of the adopted concur with the adopters, they shall divide the entire estate in equal shares, one half to be inherited by the spouse or the illegitimate children of the adopted and the other half, by the adopters. **TRUE**
38. Payment shall be made within the first five days of each corresponding month. **TRUE**
39. The person obliged to give support shall fulfil the obligation by receiving and maintaining in the family dwelling the person who has a right to receive support. **FALSE**

42. Illegitimate children may establish their illegitimate filiation in the same way and on the same evidence as legitimate children

TRUE – Art 175 (1) of FC

43. The annulment of a voidable marriage shall not affect the legitimation

TRUE – Art 178 of FC, second sentence

44. The legitimation of children who died before the celebration of the marriage shall benefit their descendants

TRUE – Art 181 of FC

45. The legitime of the illegitimate children shall consist of one-half of the legitime of the legitimate children

FALSE – Art 176, the legitime of "EACH" of the illegitimate children....

46. Only minors may be adopted

FALSE – Art 183 (2): Only minors may be adopted, **except in the cases when the adoption of a person of majority age is allowed in this title.**

Check Art 187(1): A person of legal age may not be adopted, UNLESS: (1)child by nature of the adopter or his spouse; (2) or prior to the adoption, said person consistently considered and treated by the adopter as his or her own child during minority

47. Legitimate and illegitimate children and descendants and the surviving spouse of the adopted shall inherit from the adopted, in accordance with the ordinary rules of legal or intestate succession

TRUE – Art 190 (1) of FC

48. When the obligation to give support falls upon two or more persons, the payment of the same shall be divided between them in proportion to the resources of each

TRUE – Art 200 (1) of FC

49. Payment shall be made within the first fifteen days of each corresponding month

FALSE – Art 203 (3), payment must be made within the first 5 days

50. The person obliged to give support shall fulfill the obligation by paying the allowance fixed

FALSE – Art 204 – The law provides the person obliged to give support an option to either pay a fixed allowance, or by receiving or maintaining in the family dwelling the person who has the right to support. Second option is however, not available in case there is a moral or legal obstacle thereto.

Multiple Choice.

1. A marriage between 1st cousins is:
   a. Valid because they are more than 4 degrees removed from each other.
   b. Valid because they do not belong to the direct line
   c. Void because it is incestuous
   d. Void by reason of public policy
   e. Voidable because of a defect in consent.
2. Marriages may be solemnized by, except:
   a. Provincial Governor, within the province;
   b. Any priest, rabbi, imam, or minister of any church or religious sect;
   c. Any consul or vice-consul in the case provided in Article 10.
   d. Any incumbent member of the judiciary within the court's jurisdiction
   e. None of the above
3. A marriage license is required in the following:
   a. A marriage in articulo mortis between passenger or crew members of airlines.
   b. A marriage in articulo mortis between persons within the zero of military operation.
   c. A marriage between Filipino citizens abroad solemnized by a consul.
   d. A marriage where the residence of either party is so located that there is no means of Transportation to enable such party to appear personally before the local civil registrant
   e. None of the above.
4. The following marriages are void from the beginning for reasons of public policy, EXCEPT;
   a. Between second cousins
   b. Between step-parents and step-children
   c. between parents-in-law and children-in-law
   d. between uncle and niece
   e. between the adopting parent and the adopted child;
5. The effects of legal separation are the following, except:
   a. the spouses shall be entitled to live separately from each other
   b. the absolute community or the conjugal partnership shall be dissolved and liquidated
   c. the offending spouse shall be disqualified from inheriting from the innocent spouse by intestate and testamentary succession.
   d. the custody of the minor children shall be awarded to the innocent spouse, subject to the provisions of Article 213 of this Code
   e. none of the above
16. The spouse who has left the conjugal dwelling shall be prima facie presumed to have no intention of returning to the conjugal dwelling:
   a. After 90 days
   b. Immediately after leaving the conjugal dwelling
   c. After 6 months
   d. After 1 year
   e. After 5 years
17. The conjugal partnership shall be liable for all debts and obligations contracted during the marriage by the designated administrator-spouse for the benefit of the conjugal partnership of gains. In case of insufficiency of said assets, the spouse shall be liable:
   a. Solidarily
   b. jointly
   c. alternatively
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18. This shall be excluded from the community property:
   a. Property acquired during the marriage by onerous title by either spouse
   b. Property acquired before the marriage by either spouse who has legitimate descendants by a former marriage.
   c. Property acquired before the marriage by gratuitous title by either spouse
   d. Jewelry
   e. None of the above
19. This is required for a child by artificial insemination to be a legitimate child of A and B, husband and wife, respectively:
   a. the child was conceived as a result of artificial insemination of C.
   b. the child was conceived with the sperm of A.
   c. both A and B authorized the artificial insemination in a written instrument.
   d. the authority or ratification of such artificial insemination may be signed after the birth of the child.
   e. none of the above
20. Natividad is the widow of Mariano. Melitona is her mother. Rupert is her grandchild. Generoso is her brother. Crescente is her nephew. Who will first be compelled to give support to Melitona?
   a. Melitona
   b. Rupert
   c. Generoso

b. between parents-in-law and children-in-law
c. between uncle and niece
d. between the adopting parents and the adopted child;
e. none of the above

7. This may involve a prejudicial question in the case for bigamy:
a. legal separation
b. annulment of the first marriage
c. annulment of the second marriage
d. nullity of the second marriage due to psychological incapacity
e. none of the above

8. There is fraud which will make the marriage voidable if:
a. Non-disclosure of a previous conviction by final judgment of the other party of a crime.
b. Concealment by the wife of the fact that at the time of the marriage, she was pregnant.
c. Concealment of sexually transmissible disease, if found to be serious, existing at the time of the marriage.
d. All of the above.
e: None of the above.

9. That the petitioner freely cohabited with the other spouse is a defense in an action for annulment of the following grounds, EXCEPT:
a. lack of parental consent
b. that the respondent was of unsound mind
c. that the respondent was physically incapable of consummating the marriage with the other
d. that the consent of petitioner was obtained by fraud
e. none of the above.

10. The following have the right to institute an action for annulment, EXCEPT:
a. the injured party, within five year after the discovery of the fraud
b. the parents of the party who was only 19 years old without parental consent, within 5 years from the time the child attains the age of 21.
c. the injured party, within five years from the time the force, intimidation or undue influence disappeared or ceased.
d. the spouse, who had no knowledge of the other's insanity, at any time before the death of either party.
e. none of the above

MULTIPLE CHOICE

1. A petition for legal separation may be filed on any of the following grounds except:
a. Final Judgment sentencing respondent of imprisonment of more than six years
b. Contracting by respondent of a subsequent bigamous marriage, whether in the Philippines or Abroad.
c. Attempt by the respondent against the life of the petitioner; a common child, or a child of the petitioner
d. d.Abandonment of petitioner by respondent without justifiable cause for more than 1 year
e. None of the Above.

2. The obligation supporting a spouse ceases after the following, except:
a. Dissolution of the marriage by death of the spouse
b. Declaration of nullity
c. Annulment of marriage
d. Legal separation
e. None of the above

3. Which among the following is not a ground to revoke adonation by reason of marriage:
a. When the marriage takes place without the consent without the consent of the parents or guardians as required by law
b. If it is within a resolutory condition and the condition is complied with
c. **Donations made in the marriage settlements, if the marriage is not celebrated**.
d. Upon legal separation, the donee being the guilty spouse
e. None of the Above

4. The property regime of the spouses married in 1999 will NOT be absolute community of property if:
a. No marriage settlement was executed
b. The marriage settlement is void
c. The marriage settlement specified absolute community property
d. If one of the contracting parties is a surviving spouse who contracted a subsequent marriage without liquidating the community property
e. None of the above

11. The status of the child in relation to the father or the mother and may be used to indicate paternity or maternity is known as:
a. Legitimacy
b. Paternity
c. Maternity
d. Filiation

12. A child conceived before the death of the husband [A] of B but born one month after the marriage between B and C is:
a. Legitimate child of A and B
b. Illegitimate child of A and B
c. Legitimated child of B and C
d. illegitimate child of B and C
e. Legitimate child of B and C

13. A died on January 1 2011. His widow, B, married C on May 1 2011. D was born on October 15 2011. In the absence of proof to the contrary, D will be consideres as the:
a. Legitimate child of A and B
b. Illegitimate child of A and B
c. Legitimate child of B and C
d. Illegitimate child of B and C
e. none of the above

14. Legitimacy of a child may be impugned on the ground that it was physically impossible for the husband to have sexual intercourse with the wife:
a. right after the solemnization of the marriage
b. within the first 30 days of the 300 days which immediately preceded the birth of the child
c. within the first 180 which immediately preceded the birth of the child
d. within the first 120 days of the 300 days which immediately preceded the birth of the child.

15. After the death of the alleged parent, the filiation of an illegitimate child may be established by any of the following EXCEPT:
a. The record of birth appearing in the civil register
b. An admission of illegitimate filiation in a public document
c. An admission of illegitimate filiation in a private handwritten instrument and signed by the parent concerned.
d. The open and continuous possession of the status of an illegitimate child.
e. none of the above.

16. If the husband resides in the municipality or city where the birth took place or was recorded, the action to impugn the legitimacy of the child shall be brought within:
a. 1 yr from the knowledge of the birth or its recording in the civil register.
b. 2 yrs from knowledge of the birth or recording in the civil register
c. 3 yrs from knowledge of the birth or recording in the civil register
d. 4 yrs from knowledge of the birth of recording in the civil register

17. The consent of the following is required except:
a. adoptee, if 10 yrs old or over
b. biological parents of adoptee, if known
c. spouse of adopter
d. parents of adopter
e. all of the above
f. none of the above

18. The following are necessary for a Filipino to be able to adopt, EXCEPT:
a. of legal age
b. of good moral character
c. has not been convicted of any crime involving moral turpitude
d. emotionally and psychologically capable of caring for children
e. none of the above

19. In case of adoption, husband and wife shall exercise joint parental authority in the following cases, except:
a. if husband and wife jointly adopt
b. one spouse adopts the illegitimate child of the other
c. one spouse seeks to adopt his own illegitimate child
d. all of the above
e. none of the above

20. The following are necessary for an alien to be able to adopt, EXCEPT:
a. in a position to support and care for his children

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Part One
True or False. Write the letter only
Consider the statement true only when it is absolutely true.

a. Both are true
b. Both are false
c. No. 1 is true, No. 2 is false
d. No. 1 is false, No. 2 is true

[2 points each]

1. Statement 1
Under the regime of conjugal partnership of gains, the husband and wife place in a common fund the proceeds, products, fruits and income from their separate properties.

Statement 2
A marriage solemnized in 1989 between the adopted child and a child of the adopter is void.

ANSWER: B

False: **Art. 106.** Under the regime of conjugal partnership of gains, the husband and wife place in a common fund the proceeds, products, fruits and income from their separate properties and those acquired by either or both spouses through their efforts or by chance, and, upon dissolution of the marriage or of the partnership, the net gains or benefits obtained by either or both spouses shall be divided equally between them, unless otherwise agreed in the marriage settlements.

False: **Art. 38.** The following marriages shall be void from the beginning for reasons of public policy: xxx
(7) Between an adopted child and a legitimate child of the adopter; xxx

2. Statement 1
Donations of future property shall be governed by the provisions on testamentary succession and the formalities of wills.

Statement 2
A marriage contracted by any person during subsistence of a previous marriage shall be null and void.

ANSWER: C

True: **Art. 84(2).** xxx Donations of future property shall be governed by the provisions on testamentary succession and the formalities of wills.

False: **Art. 41.** A marriage contracted by any person during subsistence of a previous marriage shall be null and void, unless before the celebration of the subsequent marriage, the prior spouse had been absent for four consecutive years and the spouse present has a well-founded belief that the absent spouse was already dead. In case of disappearance where there is danger of death under the circumstances set forth in the provisions of Article 391 of the Civil Code, an absence of only two years shall be sufficient.

For the purpose of contracting the subsequent marriage under the preceding paragraph the spouse present must institute a summary proceeding as provided in this Code for the declaration of presumptive death of the absentee, without prejudice to the effect of reappearance of the absent spouse.

3. Statement 1
Concealment of a sexually transmissible disease existing at the time of the marriage, if serious and appears to be incurable, constitutes fraud.

Statement 2
The community property shall consist of all the property owned by the spouses at the time of the celebration of the marriage or acquired thereafter.

ANSWER: C

True: **Art. 45(6).** A marriage may be annulled for any of the following causes, existing at the time of the marriage: xxx
(6) That either party was afflicted with a sexually-transmissible disease found to be serious and appears to be incurable.

False: **Art. 91.** Unless otherwise provided in this Chapter or in the marriage settlements, the community property shall consist of all the property owned by the spouses at the time of the celebration of the marriage or acquired thereafter.

Art. 92. The following shall be excluded from the community property:
(1) Property acquired during the marriage by gratuitous title by either spouse, and the fruits as well as the income thereof, if any, unless it is expressly provided by the donor, testator or grantor that they shall form part of the community property;
(2) Property for personal and exclusive use of either spouse. However, jewelry shall form part of the community property;
(3) Property acquired before the marriage by either spouse who has legitimate descendants by a former marriage, and the fruits as well as the income, if any, of such property.

4. Statement 1
An action for annulment shall in no case be tried before six months shall have elapsed since the filing of the petition.

Statement 2
Under the Family Code, an action for legal separation shall be filed within five years from the discovery of the cause.

ANSWER: B

False: **Art. 58.** An action for legal separation shall in no case be tried before six months shall have elapsed since the filing of the petition.

False: **Art. 57.** An action for legal separation shall be filed within five years from the time of the occurrence of the cause.

5. Statement 1
X died in 1987. In 1991, a petition for the settlement of the estate of X was filed. The property regime of spouses X and Y will be conjugal partnership of gains in the absence of a marriage settlement between the spouses.

Statement 2

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6. Statement 1
The absence of any of the essential or formal requisites shall render the marriage void ab initio.

Statement 2
The spouse who has left the conjugal dwelling for a period of three months or has failed within the same period to give any information as to his or her whereabouts shall be deemed to have no intention of returning to the conjugal dwelling.

ANSWER: F

False: **Art. 4.** The absence of any of the essential or formal requisites shall render the marriage void ab initio, except as stated in Article 35 (2). xxx

Art. 35. The following marriages shall be void from the beginning: xxx
(2) Those solemnized by any person not legally authorized to perform marriages **unless** such marriages were contracted with either or both parties believing in good faith that the solemnizing officer had the legal authority to do so;
(3) Those solemnized without license, **except** those covered the preceding Chapter; xxx

False: **Art. 101.** xxx The spouse who has left the conjugal dwelling for a period of three months or has failed within the same period to give any information as to his or her whereabouts shall be prima facie presumed to have no intention of returning to the conjugal dwelling.

7. Statement 1
A marriage solemnized in 1990 between collateral blood relatives whether legitimate or illegitimate, up to the fourth civil degree is incestuous and void from the beginning.

Statement 2
The family home, constituted jointly by the husband and the wife or by an unmarried head of a family, is the dwelling house where they and their family resides, or the land on which it is situated.

ANSWER: F

False: **Art. 38.** The following marriages shall be void from the beginning for reasons of public policy:
(1) Between collateral blood relatives whether legitimate or illegitimate, up to the fourth civil degree;
* qualify that as to the brothers and sisters, who are also collateral blood relatives within the fourth civil degree, their marriage is incestuous and void from the beginning.

Art. 37. Marriages between the following are incestuous and void from the beginning, whether relationship between the parties be legitimate or illegitimate: xxx
(2) Between brothers and sisters, whether of the full or half blood.

False: Art. 152. The family home, constituted jointly by the husband and the wife or by an unmarried head of a family, is the dwelling house where they and their family reside, and the land on which it is situated.

SC: If the land is not owned by the spouses who are the owners of the house, they could not have constituted a family home.

8. Statement 1
Illegitimate children may establish their illegitimate filiation in the same way and on the same evidence as legitimate children.

Statement 2
Property acquired before the marriage by either spouse who has a child prior to the marriage shall be excluded from the community property.

ANSWER: T

True: Art. 175. Illegitimate children may establish their illegitimate filiation in the same way and on the same evidence as legitimate children. xxx

False: **Art. 92.** The following shall be excluded from the community property: xxx
(3) Property acquired before the marriage by either spouse who has legitimate descendants by a former marriage, and the fruits as well as the income, if any, of such property.

9. Statement 1
In case of death, absence or unsuitability of the parents, substitute parental authority shall be exercised by the oldest brother or sister.

Statement 2
Only children conceived or born outside of wedlock of parents who, at the time of the conception of the former, were not capacitated to marry each other may be legitimated.

ANSWER: F

False: **Art. 214.** In case of death, absence or unsuitability of the parents, substitute parental authority shall be exercised by the surviving grandparent. In case several survive, the one designated by the court, taking into account the same consideration mentioned in the preceding article, shall exercise the authority.

False: **Art. 177.** Only children conceived and born outside of wedlock of parents who, at the time of the conception of the former, were not disqualified by any impediment to marry each other may be legitimated.

10. Statement 1
The family home must be part of the properties of the absolute community or the conjugal partnership.

Statement 2
Children conceived and born before the judgment of annulment or absolute nullity of the marriage under Article 36 has become final and executory shall be considered legitimate.

ANSWER: T

False: **Art. 156.** The family home must be part of the properties of the absolute community or the conjugal partnership, or of the exclusive properties of either spouse with the latter's consent. It may also be constituted by an unmarried head of a family on his or her own property.

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Part Two
Multiple Choice. Choose the best answer. Write the letter only.
[2 points each]

11. There may not be an irregularity in the issuance of a marriage license even if:
    a. None of the contracting parties habitually resides in the city where the license was issued.
    b. There is no certificate of legal capacity to contract marriage of an alien who is one of the contracting parties.
    c. There is lack of publication of the application for a marriage license.
    d. <u>There is lack of parental advice.</u>
    e. None of the above.

12. A marriage between 1st cousins is:
    a. Valid because they are more than 4 degrees removed from each other.
    b. Valid because they do not belong to the direct line.
    c. <u>Void by reason of public policy.</u>
    d. Void because it is incestuous.

13. A, 22 years old, and B, a widow, 20 years old, applied for a marriage license on January 2, 2011. Without parental consent nor advice, the civil registrar issued a license on January 15, 2011. They were married on May 5, 2011. Is the marriage valid?
    a. Valid, because all the essential and formal requisites are present without any defect in the former nor any irregularity in the latter.
    b. Voidable, because one of the contracting parties is below 21 and there was no parental consent.
    c. Void, because the license had already expired.
    d. <u>Valid, but there was an irregularity in the issuance of the marriage license.</u>

14. Both B and C are residents of the City of Makati. They obtained a marriage license in Quezon City. They are married in the City of Manila by an RTC Judge of Pasay City. Is the marriage valid?
    a. Valid, because all the essential and formal requisites are present without any defect in the former nor any irregularity in the latter.
    b. Void, none of the contracting parties habitually resides in the city where the license was issued.
    c. <u>Valid, despite some irregularities.</u>
    d. Void, because the marriage was solemnized outside the jurisdiction of the solemnizing officer.

15. A marriage license is required in the following:
    a. A marriage among members of the ethnic cultural communities.
    b. A marriage in articulo mortis between persons within the zone of military operations.
    c. <u>A marriage between Filipino citizens abroad.</u>
    d. A marriage where the residence of either party is so located that there is no means of transportation to enable such party to appear personally before the local civil registrar.
    e. None of the above.

16. X, a Roman Catholic, and Y, a Baptist had been living together as husband and wife without the benefit of marriage since January 1, 2006, although both are capacitated to marry each other. On March 1, 2011, in a birthday party in Quezon City, X suffered a heart attack. Believing that X was about to die, Y asked Z, a parish priest of Palo, Leyte to solemnize her marriage to X. Z solemnized the marriage. Today, X is still practicing his profession. Is the marriage valid?
    a. Void, because the priest had no authority to solemnize marriages in Quezon City.
    b. Void, because of the lack of a marriage license.
    c. Void, because X survived the heart attack.
    d. Valid despite the absence of a marriage license because X subsequently survived.
    e. <u>Valid despite the absence of a marriage license because they have been living together as husband and wife since January 1, 2006.</u>

17. A and B, both Filipinos, got married in Tacloban City in 1995. Thereafter, A went to New York to work as a nurse, where he met C, also a Filipino citizen. In 1998, A obtained a divorce decree in New York. He became a citizen of New York in 2001. In 2002, A married C. In 2003, B married D in Tacloban City. Is the marriage between B and D valid?
    a. Valid, because a divorce decree was obtained by A, thus, capacitating B to remarry.
    b. Void, because A and B were Filipinos at the time of the marriage, therefore Article 26, par. 2 does not apply.
    c. Valid, because when B married D, A was no longer a Filipino citizen.
    d. <u>Void, because A was still a Filipino at the time the divorce decree was obtained, thus, did not capacitate B to remarry D</u>.

18. The marriage of A and B, both Filipinos, were solemnized in London in accordance with the laws in force in London and valid there as such. The marriage shall also be valid here in the Philippines even if:
    a. A and B are first cousins.
    b. B was only 17 during the marriage and there was no parental consent.
    c. Bigamous marriage not falling under Article 41 of the Family Code.
    d. There was mistake of one contracting party as to the identity of the other.
    e. <u>None of the above.</u>

19. The marriage of A and B, both Filipinos, were solemnized in London in accordance with the laws in force in London and valid there as such. The marriage shall be void here in the Philippines if:
    a. A was 18 years old, without parental authority.
    b. It is a proxy marriage.
    c. A & B are stepbrother and stepsister.
    d. The marriage was solemnized by the Prime Minister of the United Kingdom.
    e. <u>None of the above.</u>

20. In 1989, A married C. A's husband [B] had been absent since 1983. B was in danger of death at the time of his disappearance. The marriage of A and C is:

c. Legal separation.
d. All of the above.
e. A and B only.

33. The effects of legal separation are the following, except:
a. The spouses shall be entitled to live separately from each other.
b. The absolute community or the conjugal partnership shall be dissolved and liquidated.
c. The offending spouse shall be disqualified from inheriting from the innocent spouse by intestate and testamentary succession.
d. The custody of the minor children shall be awarded to the innocent spouse, subject to the provisions of Article 213 of this Code.
e. None of the above.

34. The obligation of mutual support between spouses ceases after the following, except:
a. Dissolution of the marriage by the death of a spouse.
b. Declaration of nullity.
c. Annulment of marriage.
d. Legal separation.
e. None of the above.

35. This may involve a prejudicial question in the case for bigamy:
a. Legal separation.
b. Annulment of the first marriage.
c. Annulment of the second marriage.
d. Nullity of the second marriage due to psychological incapacity.
e. None of the above.

36. If the wife left the conjugal abode:
a. The court can compel her to live with her husband under pain of contempt.
b. The court can compel her to live with her husband under pain of contempt only if she left the conjugal abode without just cause.
c. The husband may still be compelled to give support.
d. The husband can be compelled to give support even if the abandonment was without just cause.
e. None of the above.

37. The property regime of the spouses married in 1999 will NOT be absolute community of property if:
a. No marriage settlement was executed.
b. The marriage settlement is void.
c. The marriage settlement specified absolute community of property.
d. If one of the contracting parties is a surviving spouse who contracted a subsequent marriage without liquidating the community property.
e. None of the above.

38. A donation by reason of marriage may be revoked by the donor in the following cases, except:
a. If the marriage is not celebrated and the donation was made in the marriage settlement.
b. When the marriage takes place without the consent of the parents or guardians, as required by law.
c. When the marriage is annulled, and the done acted in bad faith.
d. If it is with a resolutory condition and the condition is complied with.
e. None of the above.

39. The following will dissolve both the absolute community and the marriage, except:
a. Death of one of the spouses.
b. Annulment of the marriage.
c. Legal separation.
d. All of the above.
e. None of the above.

40. This property may still be included in the absolute community of property:
a. Property acquired through donation during marriage.
b. Property (not jewelry) for personal and exclusive use.
c. The fruits of the property acquired by intestate succession during the marriage.
d. Property acquired before the marriage by either spouse who has legitimate descendants by a former marriage.
e. None of the above.

41. In the will of X, a parcel of land was validly bequeathed to A who was married to B at 5pm on June 1, 2011. A and B executed a marriage settlement where they agreed for a conjugal partnership of gains. At 10am, on June 1, 2011, X died. This parcel of land will form part of the:
a. Conjugal partnership property.
b. Absolute community.
c. Separate property of A.
d. Estate of X.
e. State.

42. The family home shall NOT be exempt from execution, forced sale or attachment except:
a. For nonpayment of taxes.
b. For debts incurred prior to the constitution of the family home.
c. For debts due to laborers who have rendered service for the construction of the building.
d. For debts due to laborers who have rendered service for the repair and improvements of the building.
e. None of the above.

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44. For the child to be legitimate, he must be:
    a. Conceived during the marriage.
    b. Born during the marriage.
    c. Conceived and born during the marriage.
    d. Conceived or born during the marriage.
    e. All of the above.
    f. None of the above.

45. After the death of the alleged parent, the filiation of the child may NOT be established by:
    a. Record of birth appearing in the civil register.
    b. Final judgment.
    c. An admission of legitimate filiation in a public document and signed by the parent concerned.
    d. The open and continuous possession of the status of a legitimate child.
    e. None of the above.

46. The consent of the following are required, except:
    a. Adoptee, if 10 years old or over.
    b. Biological parents of adoptee.
    c. Spouse of adopter.
    d. Parents of adopter.
    e. None of the above.

47. Under the family code, these children can be legitimated:
    a. Adulterous.
    b. Bigamous.
    c. Incestuous.
    d. All of the above.
    e. None of the above.

48. The liability of the school, its administrators and teachers, or the individual, entity or institution engaged in child care over the minor child for damage caused by the acts or omissions of the unemancipated minor while under their supervision, instruction or custody shall be:
    a. Joint and subsidiary.
    b. Principal and solidary.
    c. Principal and joint.
    d. Subsidiary and solidary.

49. The liability of parents for damage caused by the acts or omissions of the unemancipated minor while under the supervision, instruction or custody of the school, its administrators and teachers, or the individual, entity or institution engaged in child care over the minor child shall be:
    a. Subsidiary.
    b. Direct and primary.
    c. Alternative.
    d. Cumulative.

50. Upon conviction of a parent or the person exercising parental authority of a crime which carries with it the penalty of civil interdiction the parental authority shall be:
    a. Terminated.
    b. Suspended.
    c. Reinstated.
    d. Prima Facie Terminated.

Quiz # 1

True or False

1. The decree of legal separation shall entitle the spouses to live separately from each other, but the marriage bonds shall not be severed. **TRUE** FALSE

2. The marriage settlements and any modification thereof shall be in writing, signed by the parties and executed before the celebration of the marriage. TRUE

3. Donations by reason of marriage are those which are made before its celebration, in consideration of the same. FALSE

4. Children born after the dissolution of the marriage of the parents may be legitimate. **TRUE**

5. The filiation of illegitimate children may be established by the open and continuous possession of the status of a child after the death of the alleged parent. FALSE

6. One of the formal requisites of marriage is a marriage contract. **FALSE**

7. The absence of any of the formal requisites shall render the marriage void ab initio. **FALSE | Except as provided in Art. 35(2)**

8. Any contracting party between the age of twenty-one and twenty-five shall be obliged to ask their parents or guardian for consent upon the intended marriage. FALSE

9. The license shall be valid in any part of the Philippines for a period of one hundred twenty days from the date of the issue. **TRUE Art. 20**

10. Stateless persons or refugees from other countries shall submit a certificate of legal capacity. **FALSE | Affidavit stating the circumstances showing such capacity to contract marriage.**

MCQ

1. A marriage between 1st cousins is:

   a. valid because they are more than 4 degrees removed from each other
   b. valid because they do not belong to the direct line.
   c. void because it is incestuous
   d. **void by reason of public policy**
   e. voidable because of defect in consent

2. A and B were married in September 2, 1988 when both were only 17 years old. the marriage is:

   a. ~~valid if with consent of their parents~~
   b. voidable if without parental consent
   c. voidable if without parental advice
   d. void even if with parental consent
   e. valid if both misrepresented as to their age

13. An irregularity in the formal requisites shall:

a. render the marriage void
b. render the marriage voidable
c. **not affect the validity of the marriage** Art 4
d. give rise to its correction

14. The following are grounds for legal separation, except:

a. adultery
b. **conviction of a crime involving a penalty of at least 2 years and 1 day.** Art. 55
c. attempt by the respondent against the life of the petitioner
d. drug addiction, whether or not existing at the time of marriage
e. none of the above

15. The effects of legal separation are the following, except:

a. the spouses shall be entitle to live separately from each other
b. the absolute community or the conjugal partnership shall be dissolved and liquidated
c. **the offending spouse shall be disqualified from inheriting from the innocent spouse by intestate and testamentary succession** Art 63 → ONLY intestate (data- NOT include testamentary unlike in Art. 43)
d. the custody of the minor children shall be awarded to the innocent spouse, subject to the provisions of Article 213 of this Code.
e. none of the above

16. The family domicile shall be fixed by:

a. the husband
b. the wife
c. the husband and wife. in case of disagreement, the husband's decision shall prevail.
d. the husband and wife. in case of disagreement, the family council shall decide.
e. **the husband and wife. in case of disagreement, the court shall decide.** Art 69

17. The conjugal partnership shall be liable for all debts and obligations contracted during the marriage by the designated administrator-spouse for the benefit of the conjugal partnership of gains. in case of insufficiency of said assets, the spouses shall be liable

a. **solidarily** Art. 121, last par.
b. jointly
c. alternatively
d. cumulatively

18. This shall be excluded from the community property

a. property acquired during the marriage by onerous title by either spouse
b. **property acquired before the marriage by either spouse who has legitimate descendants by a former marriage** Art 92, par 3
c. property acquired before the marriage by gratuitous title by either spouse
d. jewelry

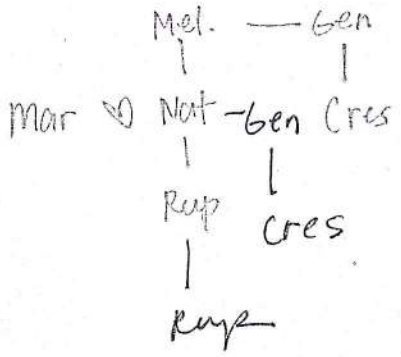
e. none of the above

19. This is required for a child by artificial insemination to be a legitimate child of A and B, husband and wife, respectively:

a. the child was conceived as a result of articifical insemination of c
b. the child was conceived with the sperm of A
c. **both A and b authorize the artificial insemination in a written instrument** Art 164
d. the authority or ratification of such artificial insemination may be signed after the birth of the child
e. none of the above

20. Natividad is the widow of Mariano. Melitona is her mother. Rupert is her grandchild. Generoso is her brother. Crescente is her nephew. who will first be compelled to give support to Melitona?

a. Melitona
b. Rupert
c. **Generoso**
d. Crescente
e. Mariano



Quiz # 2

True or False.

a. Both true

b. Both false

c. No. 1 is true, No. 2 is false

d. No. 1 is false, No. 2 is true

1. Irreconcilable difference and conflicting personalities constitute Psychological Incapacity. FALSE

Under Art. 26 (2) of the Family Code the???

2. The absence of any of the formal requisite shall render the marriage void ab initio. FALSE Art 3 (1)

No license shall be necessary for the marriage of a man and a woman who a lived together as husband and wife for at least 5 years and without any legal impediment to marry each other. TRUE Art. 34

3. a. a marriage may be annulled on the ground of sterility FALSE Art 45 - NOT Sterility BUT physical incapacity

b. somnambulism is a ground for annulment of marriage TRUE case

4. a. mistake of one of the contracting parties as to the identity of the other is a ground for the annulment of marriage FALSE (not voidable but void- Art. 35)

b. concealment by the wife of the fact that at the time of the marriage, she was pregnant, shall constitute fraud resulting in a voidable marriage FALSE Art. 46 (by a man other than her husband)

5. a. the nullity of the second marriage is not per se an argument for the ??? (ending) of a criminal liability for bigamy FALSE

b. the action for annulment of marriage may be filed by the parent or guardian who did not give his or her consent within five years after the child attained the age of majority? FALSE Art. 47 (should be: before attaining the age of 21)

MCQ

6. a petition for legal separation may be filed on any of the following grounds except:

a. final judgment sentencing the respondent to imprisonment of more than six years:
b. contracting by the respondent of a subsequent bigamous marriage, whether in the Philippines or abroad
c. attempt by the respondent against the life of the petitioner, a common child or a child of the petitioner Art. 55(9)
d. abandonment of petitionerby respondent without justifiable cause for more than one year
e. none of the above

7. the obligation of supporting a spouse cease after the following, except:

a. dissolution of the marriage by the death of a spouse
b. declaration of nullity
c. annulment of marriage
d. **legal separation**
e. none of the above

8. which among the following is not a ground to revoke a donation by reason of marriage:

a. when the marriage takes place without the consent of the parents or guardians required by law
b. if it is with a resolutory condition and the condition is complied with
c. **donation made in the marriage settlemetns, if the marriage is not celebrated.** Art. 86
d. upon legal separation, the donee being the guilty spouse
e. none of the above

9. the property regime of the spouse married in 1999 will not be absolute community of property if:

a. no marriage settlement was executed
b. the marriage settlement is void.
c. the marriage settlement specified absolute community of property
d. **if one of the contracting parties is a surviving spouse who contracted a subsequent marriage without liquidating the community property**
e. none of the above

10. the shall be excluded from the community property

a. property acquired during the marriage by onerous title by either spouse
b. **property acquired before the marriage by either spouse who has legitimate descendatns by a former marriage**
c. property acquired before the marriage by gratuitous title by either spouse
d. jewelry
e. none of the above

Quiz # 3

True or False.

a. Both true

b. Both false

c. No. 1 is true, No. 2 is false

d. No. 1 is false, No. 2 is true

1. a. adultery is a ground for legal separation **TRUE**

b. abandonment of petitioner by respondent for more than one year is a ground for legal separation **FALSE**

without justifiable cause

2. a. an action for legal separation shall be filed within one year from the time the innocent spouse became cognizant of the cause FALSE

5 yrs

b. if the husband does not actively look for the wife who left the conjugal home after her adulterous acts were discovered, there is a condonation FALSE

(means: pardon)

3. a. the spouses shall be entitled to live separately from each other only from the time the decree of legal separation becomes final and executory FALSE

filing

b. the offending spouse shall be disqualified from inheriting from the innocent spouse by intestate succession of he gave cause for legal separation TRUE

4. a. the marriage settlements and any modification thereof shall be in a public instrument FALSE

in writing

b. if the future spouses agree upon a regime of absolute community of property, they cannot donate to each other in their marriage settlements more than one-fifth of their present property FALSE

other than

5. a. donations of future property shall be governed by the provisions on testamentary succession. and formalities of wills TRUE Art. 84

b. the community property shall consists of all the property owned by the spouses at the time of the celebration of the marriage or acquired thereafter FALSE unless otherwise provided in the Code / marriage settlements Art. 91

MCQ

6. a marriage between 2nd cousins is:

a. valid because they are more than 4 degrees removed? from each other
b. valid because they do not belong to the direct line
c. void because it is incestuous
d. void by reason of public policy
e. voidable because of defect in consent

7. there may not be an irregularity in the issuance of a marriage license even if:

a. there is lack of parental consent
b. none of the contracting parties habitually resides in the city where the license was issued
c. there is no certificate of legal capacity to contract marriage of an alien who is one of the contracting parties.
d. there is lack of participation of the application for a marriage license
e. none of the above

8. the marriage of A and B, both Filipinos, were solemnized in London in accordance with the laws in force in London and valid there as such. the marriage shall also be valid here in the Philippines even if:

a. A and B are first cousins
b. B was only 17 during the marriage and there was no parental consent
c. C represented B during the marriage
d. bigamous marriage not falling under Article 41 of the Family Code
e. none of the above

9. this may involve prejudicial question in the case for bigamy

a. legal separation
b. annulment of the first marriage
c. annulment of the second marriage
d. nullity of the second marriage due to psychological incapacity
e. none of the above

10. that the petitioner freely cohabited with the other spouse is a defense in an action for annulment on the following grounds, EXCEPT:

a. lack of parental consent
b. that the respondent was of unsound mind
c. that the respondent was physically incapable of consummating the marriage with the other

d. . that the consent of petitioner was obtained by fraud.

e. none of the above

SUCCESSION REVIEW QUESTIONS AND ANSWERS

True or False

False 1. A legatee is a person called to the succession either by the provision of a will or by operation of law. Art 782

False 2. The validity of a will depends upon the observance of the law in force at the time of the death of the testator. depends on intrinsic or extrinsic validity

True 3. Capacity to succeed is governed by the law of the nation of the decedent. Art. 1039

False 4. In order to make a will, it is essential that the testator be of sound mind at the time of its probate. execution Art. 798

False 5. Succession is a mode of acquisition by virtue of which the property, rights and obligations to the extent of the value of the inheritance of a person are transmitted to another or others either by his will or by operation of law. Art. 774

False 6. Legatees and devisees are persons to whom gifts of real and personal property are respectively given by virtue of a will. Art 782

False 7. Legitime is that part of the testator's property which he cannot dispose of because the law has reserved it for certain heirs who are, therefore, called legal heirs. compulsory

False 8. Every will must be acknowledged before a notary public by the testator and the witnesses, in the presence of each other. Art 806

False 9. If the testator be deaf, or a deaf-mute, the will shall be read to him twice; otherwise, he shall designate two persons to read it and communicate to him, in some practicable manner, the contents thereof.

False 10. Full blood relationship is that existing between persons who have legitimate relations. the same father & the same mother Art 967

False 11. A will made in the Philippines by a citizen or subject of another country produces effect in the Philippines if made with the formalities prescribed by the law of the place in which he resides. Art 817

False 12. Full blood relationship is that existing between persons who have legitimate relations.

False 13. The cause of unworthiness shall be without effect if the testator had knowledge thereof at the time he made the will. maybe that the person who committed the act via NOT an heir instituted in the will

False 14. A voluntary heir is a person called to the succession either by the provision of a will or by operation of law. ONLY by the provision of a will

True 15. If the person excluded from the inheritance by reason of incapacity should be a child or descendant of the decedent and should have children or descendants, the latter shall acquire his right to the legitime. Art 887

16. The action for a declaration of incapacity and for the recovery of the inheritance, devise or legacy shall be brought within five years from the time of the death of the decedent.

©

1. STATEMENTS

T A person may represent him whose inheritance he has renounced (False)- Art 976

F Should brothers and sisters survive together with nephews and nieces, who was the children of the decedents brother or sister by full blood, the former shall inherit Per Stirpes, and the latter Per Capita. Art 1005

2. STATEMENTS

F Under the New Civil Code, an illegitimate child cannot inherit from the legitimate children and relatives of his father and mother (False, testate succession) Art 992

T Heirs who repudiate his share may not be represented Art- 977

3. STATEMENTS

F The Reservor is a usufructuary as to the Reservable Property Case

F The Grandchild of the Brother of the Prepositus may inherit by right of representation

4. STATEMENTS

T An Institution pertaining to the entire estate maybe valid

? F The loss of parental authority is a valid ground for disinheriting a parent Art 920(c)

5. STATEMENT

? F If the will containing a disinheritance was revoked, the disinherited heir is considered as imperfectly disinherited

T F A Compulsory heir who dies before the testator transmits nothing to his heirs Art. 856 Art. 856 2. 857
F voluntary

6. STATEMENT

T The right of representation may take place in the direct descending line, and the collateral lines, But never the ascending Art 972

= In the collateral line, it takes place, only in favor of the children of brothers or sisters, whether whether they are legitimate or illegitimate. Art. 972

7. STATEMENT

F The relatives nearest in degree excludes the more distant ones. True Art. 962

F Relatives in the same degree inherit in equal shares. False Art 962

8. STATEMENT

F The legacy or devise shall be without effect if the thing bequeathed is totally lost during the lifetime of the testator even after his death. Art. 957(3) w/o the fault of the heir

T Legal Succession may take place even if a person dies with a valid will or one which has subsequently lost its validity

9. STATEMENT

F If the Legatee or Devisee acquires the thing after the execution of the will, he can claim nothing he can claim nothing by virtue of the Legacy or Devise Art 933

T A devise of an indeterminate real property shall be valid only if there be immovable property of its kind in the estate. Art 941

10. STATEMENT

T A legacy of generic personal property shall be valid even if there be no thing of the same kind in the estate. Art. 941

F If the testator bequeath or devise something pledged or mortgaged to secure a recoverable debt before the execution of the will, the estate is obliged to pay the debt. Art. 934

11. STATEMENT

T In a fideicommissary substitution, the second heir shall acquire a right to the succession from the time of the testator's death, even though he should die before the fiduciary. Art. 866

F The substitute shall be subject to the same charges and conditions imposed upon the original heir. if personal Art. 862

12. STATEMENT

F Impossible conditions, those contrary to good customs or public policy, and those prohibited by law shall annul the institution Art. 878

F An absolute condition not to contract a first or subsequent marriage shall be considered as not written. Art. 874

13. STATEMENT

F The probate court has no power to pass upon the validity of any provision made in the will. Case Nepomuceno v. CA

F The fact of death of the testator is a jurisdictional requirment for the probate of a will.

14. STATEMENT

F When a will cannot be found by proper or diligent search after the death of the testator, it is presumed to be revoked Gago v. Mamuyac

T Subsequent wills which do not revoke the previous one in an express manner, annuls only such disposition in the prior wills as are inconsistent with or contrary to those contained in the latter wills. Art. 931

15. STATEMENT

WALA

16. STATEMENT

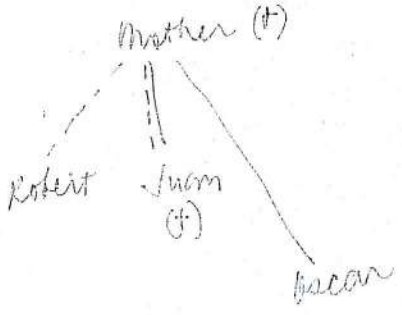
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17. STATEMENT

WALA

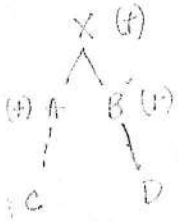
18. Juan, a spurious child, survived by Robert, his illegitimate brother of her deceased mother, and Oscar, her mother's legitimate grandson, may Robert and Oscar inherit from Juan?

A. Only Robert
B. Only Oscar
C. Both Robert and Oscar
D. Neither



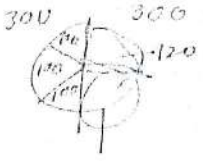
19. X was survived only by his grandchildren C and D, the Illegitimate child of A and Legitimate child of B respectively.

A. D will inherit from X in his own right
B. C will inherit from X in his own right
C. Both will inherit in their own right
D. C will inherit by Right of Representation
E. D will inherit by Right of Representation



20. X left an estate worth P600,000 survived by his legitimate children A, B, and C. He left a will dividing the estate equally among the children but also requiring A to give to Y P10,000 a month for a year. Y is entitled to receive how much?

A. 100,000
B. 120,000
C. 200,000
D. 600,000
E. Nothing



21. In a will, X gave a specific mitsubishi lancer to A, is A entitled to inherit by virtue of the legacy.

A. No, because at the time of the execution of the will X was not the owner of the car.
B. No, because at the time of the execution A was already the owner of the car
C. WALA
D. WALA

22. WALA

23. Right of Representation takes place in favor of

A. Ascendant
B. **Half Blood Relative** Art 972
C. An illegitimate relative of a legitimate relative of the decendant
D. The decedent's grand nephew
E. None of the above

24. Non fulfillment of a suspensive condition is one of the grounds when the following takes place.

A. Disinheritance
B. Substitution
C. Right of Representation
D. Incapacity
E. None of the Above Art. 960 (3)

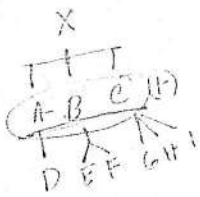
25. The testator bequeathed a car to A. A was deprived of the car by Y by final judgment. The co-heirs of A will not be liable for warrant of title if:

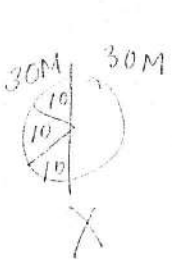
A. There was no car in the estate of X
B. If there were many cars in the estate
C. <u>The deprivation was thru an act imputable to A</u>
D. All of the above
E. None of the Above.

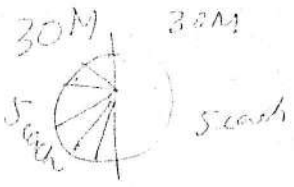
26. A, B, and C, legitimate children of X, predeceased X. D,E,F,G,H, and I, survived X. D is the legitimate child of A. E and F is the legitimate children of B and G, H and I are the legitimate children of C. X left a net estate of P60 Million. The Legitime of D is:

A. 30m
B. 15m
C. 10m
D. 5m
E. None of the Above

Art. 975







27. Should there be a need for reduction, the last to suffer reduction will be

A. Donation Mortis Causa
B. Donation Intervivos
C. Devise
D. Legacy
E. None of the Above

Art. 911

28. In the will of X, the following disposition appears: To A P1m as a preferred legacy, to B P1m as Support, to C P1m as remunerations for services rendered while X was sick, and to D P1m for his

29. There can be preterition if,

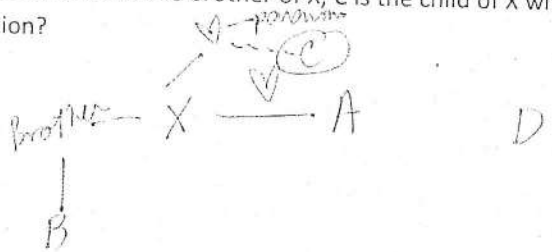
A. The deceased died intestate
B. Not all properties were disposed of in the will
C. The will is void
D. The heir was disinherited
E. None of the above

30. The following can be preterited, except

A. A legatee
B. Parents
C. Legitimate Daughter
D. Illegitimate son
E. Grand Parent

31. A, B, C and D survived X. A is the surviving spouse, B is the child of the brother of X, C is the child of X with his paramour, D was given a car in the will of X. Who can validly claim preterition?

A. A
B. B
C. C
D. D
E. None of the Above



32: For the property to be a reservable property, it must come from:

A. **Ascendant of the prepositus**

33. For a property to be a reservable property, it must be acquired from the prepositus by the:

A. Ascendant of the Prepositus
B. Descendant of the Prepositus
C. Brother of the Reservor
D. Sister of the Reservee
E. Any of the Above

34. In reserva troncal, the prepositus:

A. Acquires the right of a usufructuary
B. Becomes the administrator of the property
C. Acquires absolute ownership over the property
D. Acquires a conditional ownership over the property
E. Becomes a trustee

35. Reserva Lineal arises from the death of the:

A. Origin
B. Prepositus
C. Reservista
D. Reservoir
E. Reservatarios

36. There will be an imperfect disinheritance if:

A. The will is void
B. Disinherited heir is not in the direct line
C. Deceased died intestate
D. **Disinheritance was without a specified cause** Art. 918
E. Heir was not mentioned in the will

37. The effect of an imperfect disinheritance is:

A. The will is annulled
B. The disinherited heir can inherit but only as a legatee or devisee
C. The disinherited heir can inherit but only as a compulsory or legal heir
D. The institution of an heir is annulled but the devises and legacies shall be valid insofar as they are not inofficious
E. The institution of an heir is annulled insofar as it may prejudice the disinherited heir but the devises and legacies shall be valid as long as they are not inofficious

38. The following shall be sufficient cause for disinheritance of a child, except

A. **Conviction of a crime** Art. 919
B. When a child leads a disgraceful life
C. Refusal without justifiable cause to support the parents
D. When a child by fraud causes the testator to make a will
E. None of the Above

39. This is a sufficient cause for the disinheritance of the parents

A. When the parents have been convicted of concubinage
B. Loss of parental authority
C. Conviction of an attempt against the life of the grandchild of the testator Art. 920
D. All of the Above
E. None of the Above

40. In the Will of X, the following disposition appears: I hereby give A ½ of the free disposable portion of my estate, B ¼ of the free disposable portion and C 1/8. If the value of the freely disposable portion of the estate of X was P160m, how much is C entitled to receive?

A. 22.86M
B. 20M
C. 53.33M
D. 26.67
E. None of the Above

41. X, a French national but a permanent resident of Canada, suffered a heart attack, and died in Japan while attending the conference. He was survived by his wife, his parents, and his sister and two children. He left properties in the Philippines and in Germany. He left a will executed in London. The will of X cannot be probated if it was executed with

A. Philippine law
B. The law of japan Art. 816
C. Law of Canada
D. British law
E. French law

42-50 COMPUTATION

SUCCESSION

QUIZ 1:

Part. I- True or False

1) A devisee is a person called to succession by operation of law. (F)

2) In order to make a will it is essential that the testator be of sound of mind at the time of his death. (F)

3) For a will to be valid, it must be in accordance with the law of the nation of the decedent. (F)

4) In fideicommissary substitution, the second heir shall acquire a right to succession from the time of the testator's death, even though he should die before the fiduciary. (T)

5) Supervening incapacity does not invalidate an effective will. (T)

6) Legatees and devisees are persons to whom gifts of real and personal property is given by virtue of a will. (F)

7) The legitime reserved for the legitimate parents shall be divided between them equally; if one of the parents should have died, the whole shall pass to the survivor. (T)

8) Every will must be acknowledged before a notary public by the testator and witnesses in the presence of each other. (F)

9) If the testator be blind, he must personally read the will. (F)

10) In recognition of an illegitimate child does not lose its legal effect even though the will wherein it was made should be revoked. (T) Art 778

Part II- Multiple Choice

11) The compulsory heir/s of X, an illegitimate child is/are **(a) his father** (b) legitimate child of his father (c) his nephew (d) brother (e) all of the above (f) none of the above

12) The legal heirs of X, a Filipino, are, except (a) his surviving spouse (b) illegitimate child (c) first cousin (d) brother **(e) second cousin** (f) None of the above

13) A was one of the three witnesses of the execution of the will of X, In the will he gave a car to A. Which of the following is correct? **(a) the legacy is void** (b) the will is void (c) A cannot be considered as a competent witness (d) All of the above (e) None of the above

14) X, a French national but a permanent resident of Canada, suffered a heart attack in Japan while attending a conference. He was survived by his wife, his parents, and two children. He left

properties in the Philippines and in Germany. He left a will which he executed in Tacloban City. The will of X may be probated if it is in accordance with the **(a) Philippine Law** (b) law of Japan (c) Law of Canda (d) French law (e) All of the above (f) None of the above

15) The priest who heard the confession of the testator during his last illness is incapable of succeeding because of (a) mistake (b) fraud **(c) undue influence** (d) violence (e) intimidation (f) None of the above

16) X, who was not in danger of death, disappeared at the age of 76. It was unknown whether or not he still lives, he shall be presumed dead for the purpose of succession after an absence of (a) one year **(b) five years** (c) seven years (d) ten years (e) 2 years, from his disappearance

17) Disposition in favor of an heir is revoked by implication of law (a) if he committed a crime (b) he is guilty of adultery or concubinage (c) accused the testator of a crime **(d) prevented the decedent from making of the will** (e) All of the above (f) None of the above

18) The following are grounds for substitution, except: **(a) disinheritance** (b) incapacity (c) renunciation (d) predecease (e) none of the above

19) There is no right of representation: **(a) in the ascending line** (b) in the descending line (c) in the collateral line (d) both a & b (e) both a & c

20) The compulsory heir of X, a Filipino is **(a) his great grandparents** (b) illegitimate child of his legitimate son (c) his sister (d) nephew (e) uncle (f) None of the above

QUIZ 2

Part I- True or False

1) A will made in the Philippines by a citizen or subject of another country produces effect in the Philippines if made with the formalities prescribed by the law of the place in which he resides. (F) Art 817

2) Full blood relationship is that existing between persons who have legitimate relations. (F) Art. 967 the same father & the same mother

3) The cause of unworthiness shall be without effect if the testator had knowledge thereof at the time he made the will. (F)

4) A voluntary heir is a person called to the succession either by the provisions a will or by operation of law. (F) Art 782 Hein

5) If the person excluded from the inheritance by reason of incapacity should be a child or descendant of the decedent and should have children or descendants, the latter shall acquire his right to the legitime. (T)

6) The action for a declaration of incapacity and for the recovery of the inheritance, device or legacy shall be brought within five years from the time of the death of the decedent. (F)

7) An inheritance is deemed accepted if the heir assigns his right to a stranger. (T)

8) If the heir repudiates the inheritance to the prejudice of his own creditors, the latter may petition the court to authorize them to accept it in the name of the heir. (T)

9) If a person, who is called to the same inheritance as an heir by will and ab itestato, repudiates the inheritance in his capacity as an intestate heir, without knowledge of his being a testamentary heir, he may still accept it in the latter capacity. (T)

10) Legal succession takes place if a person dies with a will which has subsequently lost its validity. (T)

Part II- Multiple Choice

11) The compulsory heir of X, a Filipino, is **(a) his great grandfather** (b) illegitimate child of his legitimate son (c) his sister (d) nephew (e) uncle

12) The legal heirs of X, a Filipino, are, except: (a) his surviving spouse (b) illegitimate child (c) first cousin (d) brother **(e) second cousin**

13) Of the following who survived X, who will not inherit if X died intestate? (a) his surviving spouse (b) his grandchild by a legitimate son (c) mother (d) illegitimate child of his illegitimate son **(e) c& d**

14) The priest who heard the confession of the testator X may inherit from X because: (a) the confession was not during the last illness (b) the confession happened before the execution of the will (c) the priest is a compulsory heir of X **(d) All of the above** (e) None of the above

15) In the will of X, a house and lot was given to A who was the guardian of X. A may inherit if (a) the will was executed before the final accounts of the guardianship was approved (b) the testator died after the approval of the final accounts **(c) A is the brother of X** (d) All of the above (e) None of the above

16) A, B and C were the witnesses to the execution of the will of X. A legacy may be valid if it is in favor of (a) spouse of A (b) mother of B (c) child of C **(d) grandchild of A** (e) all of the above (f) None of the above

17) A killed B. A may inherit from X if B is the (a) spouse of X (b) son of X (c) mother of X **(d) brother of X** (e) All of the above (f) None of the above

18) For an heir to be incapacitated, conviction is required in the following acts, except: (a) attempt against the life of the testator **(b) accusing the testator of a crime** (c) adultery with the spouse of the testator (d) All of the above (e) None of the above

19) The capacity of an heir to inherit shall be determined at the (a) time of the execution of the will (b) time of the birth of the heir (c) time of the probate of the will **(d) moment of the death of the decedent** (e) moment of the death of the heir (f) None of the above

20) X, who was not in danger of death, disappeared at the age of 69. It being unknown whether or not he still lives, he shall be presumed dead for purposes of succession after an absence of (a) one year (b) five years (c) seven years **(d) ten years** (e) 2 years, from his disappearance

QUIZ 3

Part I- True or False

T 1) If there are different interpretations of a testamentary disposition, that interpretation by which the disposition is to be operative shall be preferred.

T 2) A will executed abroad need not to be probated first in the country where it was executed before it may be probated here in the Philippines

F 3) A will which is void on its face cannot be the basis of a valid distribution of the estate of the testator

F 4) The doctrine of *renvoi* will apply if the decedent is a national of one country and is domiciled in another

F 5) If the will states that the language used in the will was a language "understood and known" to the testator, then there is compliance with the requirement that the will must be in a language known to the testator case

T 6) A will may be valid even if the testator's name is affixed thereto by some other person in his presence and by his express direction Art 805

T 7) A will may be valid even if its attestation clause did not state the number of pages case

F 8) If the testator and witnesses acknowledged the will before another witness who is also a notary public, the will cannot be probated case

T 9) The notary public need not sign the acknowledgement in the presence of the testator and the witnesses

T 10) Even if the testator was not blind at the time of the execution of the will, the will may be denied probate if the will was not read to him twice

Part II- Multiple Choice

11) If a cross appears above the name of the testator, the will (a) is void because the law requires a full signature (b) is void because the law requires a thumb mark (c) is void because it cannot be considered as a signature (d) may be valid as long as it is the usual way of signing by the testator (e) may be valid as long as there is a thumb mark together with the cross

12) One of the requirements for a will to be valid if another person signed the will is that: (a) he must sign his name or the name of the testator (b) the signing must be in the presence of the testator (c) the signing maybe at the express or implied direction of the testator (d) he must be one of the three (3) witnesses (e) none of the above

13) X executed a notarial will in September 1998 with A, B, and C as witnesses. In the will, a parcel of land was given to A. B was a minor at the time of the execution of the will. C is a notary public. The will (a) is void because one of the three witnesses is also a legatee (b) is void because one of the three witnesses was a minor at the time of the execution of the will (c) is void because one of the three witnesses is a notary public (d) may be valid but the devise is void (e) may be valid if the testator did not acknowledge the will before C

14) If an insertion in a holographic will was made by another person after the execution of the will without the knowledge of the testator (a) the will is void but the insertion can be given effect (b) the will is void and the insertion cannot be given effect (c) the will may be valid but the insertion cannot be given effect (d) the will may be valid and the insertion can be given effect

15) The law requires a holographic will to be dated. However, it may be valid even if it only states (a) month and day (b) day and year (c) month and year (d) month (e) year

16) Which of the following is absolutely true? (a) Revocation is an act of the testator(b) Revocation is by operation of law (c) Revocation presupposes a valid act (d) Revocation takes place only during the lifetime of the testator (e) none of the above

17) In the will of X, he gave to A a credit in the amount of P1 million. This legacy is deemed revoked (a) if X sent a demand letter to the debtor (b) if X filed an action against the debtor for the collection of the said amount (c) if the court ordered the debtor to pay X before the death of X (d) if the debtor paid X before the death of the latter

18) A disposition in favor of an heir is revoked by implication of law if (a) he was convicted of a crime (b) he is guilty of adultery or concubinage (c) he accused the testator of a crime (d) prevented the decedent from making a will

19) The following are characteristics of a will, except : (a) formal (b) ambulatory (c) joint (d) voluntary (e) none of the above

20) A will in the handwriting of the testator may be a valid will (a) only if it is an ordinary will (b) only if it is an attested will (c) only if it is a holographic will (d) whether it is an ordinary or holographic will (e) whether it is an ordinary will or attested will

SUCCESSION

TRUE OR FALSE.

1. An institution pertaining to the entire estate may be valid.
    a. TRUE.
2. A voluntary heir who dies before the testator transmits nothing to his heirs.
    a. TRUE. Even right of representation is not applicable because his heirs will inherit directly from the decedent.
3. The right of representation takes place in the direct descending line, but never in the ascending.
    a. TRUE. Note that right of representation MAY also occur in the collateral line.
4. In the collateral line, it takes place only in favor of the children of the brothers or sisters, whether they are legitimate or illegitimate.
    a. FALSE. The iron curtain rule applies.
5. In every inheritance, the relative nearest in degree excludes the more distant ones.
    a. FALSE. This is not absolute. An exception would be right of representation and preference between the lines.
6. Relatives in the same degree shall inherit in equal shares.
    a. FALSE. This is not absolute. There are instances when they are heirs of the same degree but they will not inherit in equal shares, for example due to right of representation.
7. The legacy or devise shall be without effect if the thing bequeathed is totally lost during the lifetime of the testator or even after his death.
    a. FALSE. Loss even after death of the testator may be due to the fault of another heir or the executor will still leave the devise or legacy effective.
8. Legal succession takes place if a person dies with a void will, or one which has subsequently lost its validity.
    a. TRUE.
9. A legacy of generic personal property shall be valid even if there be no things of the same kind in the estate.
    a. TRUE. A generic legacy, even there is none in estate, is still valid.
10. A devise of indeterminate real property shall be valid only if there be immovable property of its kind in the estate.
    a. TRUE.
11. The legacy of a credit against a third person is a novation of the credit by the subrogation of the legatee in the place of the original creditor.
    a. TRUE.
12. A legacy of waiver of credit is a remission or release of a debt of the legatee.
    a. TRUE. Legatee is the one with a debt and waiver amounts to remission.
13. If the legatee or devisee acquires the thing after the time of the execution of the will, he can claim nothing by virtue of the legacy or devise.
    a. FALSE. If he acquired it by onerous title, he will be entitled to reimbursement.
14. If the testator should bequeath or devise something pledged or mortgaged to secure a recoverable debt before the execution of the will, the estate is obliged to pay the debt.
    a. FALSE. Not necessarily. Testator may state in the will that the devisee or legacy will be the one to pay the debt to release such property from encumbrance.
15. In fideicommissary substitution, the second heir shall acquire a right to the succession from the time of the testator's death, even though he should die before the fiduciary.
    a. TRUE. Rights are vested the moment they survive the testator.
16. The substitute shall be subject to the same charges and conditions imposed upon the instituted heir.
    a. FALSE. This could be subject of a contrary provision in the will.
17. The designation of the day or time when the effects of the institution of an heir shall commence or cease shall be valid.
    a. TRUE.
18. A disposition with a suspensive term does not prevent the instituted heir from acquiring rights and transmitting them to his heirs even before the arrival of the term.
    a. TRUE. What is suspended is demandability.
19. Impossible conditions, those contrary to good customs or public policy and those prohibited by law shall annul the institution.
    a. FALSE. In succession, impossible conditions are deemed not written since these are gratuitous acts.
20. An absolute condition not to contract a first or subsequent marriage shall be considered not written.
    a. FALSE, as to subsequent marriage. A condition not to remarry may be valid if made by the decedent or child of the decedent.
21. When the testator calls to the succession a person and his children, they are all deemed to have been instituted successively.
    a. FALSE, not necessarily. Contrary intention may be clear in the will.
22. If each of the instituted heirs has been given an aliquot part of the inheritance, and the part together exceed the inheritance, or the whole free portion, as the case may be, each part shall be reduced proportionally.
    a. TRUE.
23. The statement of a false cause for the institution of an heir shall be considered as written.
    a. FALSE, not necessarily. Testator could still have made the institution had he known of such cause.
24. Every disposition in favor of an unknown person shall be void.
    a. FALSE. Such unknown person's identity may later be determined.
25. Preterition is the total omission from the will.
    a. FALSE. Omission *from the inheritance*, not necessarily the will alone.
26. A grandfather cannot be preterited.
    a. FALSE. A grandfather is a compulsory heir in the direct line.
27. Donations which an illegitimate child may have received during the lifetime of his father or mother shall be charged to his legitime. Should they exceed the portion that can be freely disposed of, they shall be reduced in the manner prescribed by the Code.
    a. FALSE. There may be no need to reduce if the legitime together with the freely disposable portion would cover the value of the property located.
28. When the grandchildren, who survive with their uncles, inherit from their grandparents' representation of their father, they shall bring to collation all that their father, if alive, would have been obliged to bring, even though such grandchildren have not inherited the property

MULTIPLE CHOICE.

1. X left an estate worth P600,000 survived by his 3 legitimate children, A, B, and C. He left a will requiring A to give Y, a friend, P10,000 a month for 1 year. Y is entitled to receive how much?
   a. Nothing
   b. P100,000
   c. P120,000
   d. P200,000
   e. P600,000
   NOTE: Y is not entitled to 120,000 because that would impair the legitime of the compulsory heir. The 100,000 will come from A's part in the freely disposable portion. The legitime cannot be impaired.
2. X left an estate of P100,000 and survived only by A and B, his paternal grandparents, and C, maternal grandfather.
   a. A will receive 1/3 of the estate
   b. B will receive ¼ of the estate
   c. C will receive ¼ of the estate – *as the sole grandparent in the maternal line, he is entitled to 1/2*
   d. A will receive P12,500
   e. None of the above
3. Right of representation takes place in favor of:
   a. An ascendant
   b. A half blood relative
   c. An illegitimate relative of a legitimate relative of the decedent – *iron curtain rule*
   d. The decedent's grandnephew – *right of representation in the collateral line is only up to the children of the brothers and sisters.*
   e. None of the above
4. The testator bequeathed a car to A. A was deprived of the car by Y by final judgment. The co-heirs of A will not be liable for warranty of title if:
   a. There was no car in the estate of X – *precisely there was no car in the estate, this is a generic legacy. Co-heirs will be liable.*
   b. If there were many cars in the estate – *same reason.*
   c. The deprivation was thru an act imputable to A
   d. All of the above
   e. None of the above
5. X and Y, both Filipinos, executed an instrument in Argentina wherein they instituted each other as sole heir. Upon the death of X:
   a. Y may inherit from X because the will is a valid will
   b. Y may inherit from X only if the law of Argentina allows the execution of such will
   c. Y will NOT inherit from X because the wills are reciprocal wills – *wrong. Just because joint, doesn't mean reciprocal.*
   d. Y will NOT inherit from X because the will is void – *cannot be a valid will in this country even if valid in the country where executed.*
   e. Y will NOT inherit from X only if the law of Argentina prohibits such will
6. If a cross appears above the name of the testator, the will
   a. Is void because the law requires a full signature – *this is only required in alterations and insertions in holographic wills.*
   b. Is void because the law requires a thumb mark
   c. Is void because it cannot be considered as a signature
   d. **May be valid as long as it is the usual way of signing by the testator**
   e. May be valid as long as there is a thumb mark together with the cross.
7. X executed a notarial will in September 1988 with A, B and C as witnesses. When A signed the will, B was outside the room watching a television show. The will is
   a. Void because B was not inside the room where A signed the will – *wrong. He does not need to be inside, as long as he was in the position to see. "In the presence". Nera v, Rimando.*
   b. Is void because B did not see A sign – *wrong.*
   c. May be valid as long as B was aware that A was signing – *awareness is not sufficient.*
   d. May be valid because B was still inside the house
   e. None of the above.
8. X executed a notarial will in September 1988 with A, B and C as witnesses. In the will, a parcel of land was given to A. B was a minor at the time of the execution of the will. C is a notary public. The will is
   a. Void because one of the three witnesses is also a legatee – *wrong. This only makes the legacy or devise void.*
   b. Void because one of the three witnesses was a minor at the time of the execution of the will – *take note of date.*
   c. Is void because one of the three witnesses is a notary public – *being a notary public does not make a person an incompetent witness.*
   d. May be valid and the devise is also valid – *wrong. The devise may only be valid if there were other witnesses.*
   e. May be valid if the testator acknowledged the will before another notary public.
9. The following are or may be subject to collation, except:
   a. Expenses incurred by the parents in giving their children a professional or other career
   b. Wedding gifts by parents and ascendants consisting of jewelry
   c. Election expenses
   d. Expenses for medical attendance in extraordinary inheritance
   e. None of the above
10. There can be preterition if
   a. The deceased died interstate – *wrong. There has to be a will.*
   b. The heir is of illegitimate relations – *an illegitimate child can be preterited. Escuin v. Escuin.*
   c. Not all the properties were disposed of in the will
   d. The heir was disinherited- *effect of disinheritance is difference from preterition.*
   e. None of the above

a. A – *no preterition of spouse. He is not an heir in the direct line.*
b. B – *not an heir in the direct line.*
c. C – *was not deprived of the estate.*
d. D – *already acquired juridical personality.*
e. None of the above

13. For a property to be reservable property, it must come from:
a. Ascendant of the prepositus
b. Descendant of the prepositus
c. Brother of the reservista
d. Sister of the reservatarios
e. Any of the above

14. In the will of X, the following disposition appears: "I hereby give 1/4 of the freely disposable portion of my estate to the following: A, B, grandparents of C and D and his children." A is the full blood brother of X. B is the half blood sister of X. E, F and G are the grandparents of C who survived X. H and I are the children of D. IF the value of the freely disposable portion of the estate of X is P160 million, how much will B be entitled to receive?
a. P20M
b. P10M
c. P5M
d. P40M
e. P2.5M

15. X is a citizen of France but a permanent resident of Canada, suffered a heart attack and died in Japan while attending a conference. He was survived by his wife, an American citizen, his parents, a sister and two children who are both Filipino citizens. He left properties in the Philippines and in Frace. He left a will which he executed in London. The capacity of his children to succeed shall be governed by the
a. British Law
b. Law of Japan
c. Law of Canada
d. Philippine Law
e. French Law

16. X, a Filipino but a permanent resident of Canada, suffered a heart attack and died in Japan while attending a conference. HE was survived by his wife, an American citizen, his parents and sister and 2 children. He left properties in the Philippines and France. He left a will which he executed in London. The will of X may be probated if it was executed in accordance with the
a. Law of the United State
b. Law of Japan
c. Law of Canada
d. Philippine Law
e. French law

17. X is a French national but a permanent resident of Canada, suffered a heart attack and died in Hapan while attending a conference. He was survived by his wife, his parents, a sister and two children. He left properties in the Philippines and Germany. He left a will which he executed in London. The will of X cannot be probated if it was executed in accordance with
a. Philippine law
b. Law of Japan
c. Law of Canada
d. British law
e. French law

18. The compulsory heirs of X, an illegitimate child, is
a. His father
b. Legitimate child of his father
c. His nephew
d. Brother
e. None of the above

19. The general heirs of X, a Filipino, are, except
a. The cousin of his grandmother
b. Great grandchild
c. First cousin
d. Brother
e. None of the above

20. With the intention of revoking his will, X asked his son A to get the envelope containing the will from his bag. Knowing that he is heavily favored in the will, A replaced the will with a Deed Of Sale and gave the envelope to his father. X immediately burned the envelope without looking at its contents. The will was
a. Revoked because there was intent to revoke – *just because there was intent does not necessarily mean there was revocation.*
b. Revoked because there was destruction
c. Revoked because there was mental capacity on the part of X
d. Not totally revoked because it was not destroyed.

21. X executed a will in 1990. In 1995, X executed another will revoking the 1990 will. In 1999, X executed another will expressly revoking the 1995 will. The dispositions in the 1990 will can be given effect if
a. The 1999 will is denied probate because it was void as to form
b. The 1999 will is denied probate by reason of the age of the testator
c. The 1999 will is probated and the 1995 will expressly revoked the 1990 will
d. The 1999 will is probated and the 1995 will impliedly revoked the 1990 will

c. **The will may be valid but the insertion cannot be given effect**
d. The will may be valid and the insertion can be given effect.

24. X was survived only by his grandchildren C and D, both illegitimate children. C is the child of A who is a legitimate child of X while D is the child of B, who is an illegitimate child of X. Who will inherit from X if X died intestate?
    a. C only
    b. **D only**
    c. both C and D
    d. Neither C nor D
    e. A and B
25. In the will of X executed in 1985, a 3 door apartment unit, then being rented, was given to A. X who was not in danger of death, disappeared at the age of 55 in 1990. The will was probated in 2005. A will be entitled to the rentals from
    a. 1985
    b. 1990
    c. **2000**
    d. 2005
    e. 1995

ESSAY

1. An Englishman, who is a resident of Canada, executed a will in Germany, disposing of his real and personal properties in the Philippines. What law governs the validity of his will. Would your answer be the same if he executed the will in the Philippines? Discuss.
    a. As to the will's extrinsic validity:
        i. Art. 816 provides that the will of an alien who is abroad produces effect in the Philippines if made with the formalities prescribed by the law of the place in which he resides, or according to the formalities observed in his country, or in conformity with those which this Code prescribes.
        ii. Apply *lex loci celebracionis*, the extrinsic validity of the will may also be governed by the law of the place where it was executed.
    b. If the will was executed in the Philippines, apply Art. 817 which provides that a will made in the Philippines by a citizen or subject of another country, which is executed in accordance with the law of the country of which he is a citizen or subject, and which might be proved and allowed by the law of his own country, shall have the same effect as if executed according to the laws of the Philippines. The rule of *lex loci celebracionis* also applies.
    c. As to the will's intrinsic validity:
        i. Regardless of the place of its execution, a will's intrinsic validity may be governed by the national law of the decedent or Philippine law.
2. X who died intestate, was survived by his paternal grandfather (PGF), his mother (M), his legitimate son (A), his grandchild (GC), an illegitimate child of B, a legitimate child of X who predeceased X. Who will inherit by right of representation?
    a. Right of representation is a right created by fiction of law, by virtue of which the representative is raised to the place and the degree of the person represented and acquires the rights which the latter would have if he were living or he could have inherited. (Art. 970) It takes place in the direct descending line, but never in the ascending line. (Art. 972)
    b. In the case, **no one** will inherit by right of representation.
        i. PGF cannot represent X's father as the right of representation cannot take place in the ascending line.
        ii. A cannot inherit by right of representation because he is inheriting in his own right.
        iii. GC cannot inherit by right of representation because he is barred by the Iron Curtain Rule. Under such rule, an illegitimate child is prohibited by law from inheriting from the legitimate relatives of his ascendant.
3. X who died intestate, was survived only by A, E, F, Y, G, H & I. A & B are the legitimate children of X. A renounced his share in the inheritance of X. E is the spouse of A. F is the illegitimate child of B. Y is the full blood brother of X while Z and W are the half blood sisters of X. G is the son of Z. H & I are the sons of W. If the value of the net estate of X is P800M, how should the estate be distributed?
    a. A will not inherit anything because he renounced his share.
    b. E will inherit ½ of the estate because he concurs with the brothers, sisters, nephews and nieces of the deceased.
    c. F is an illegitimate child of B, a legitimate child of X. Thus, F is barred from inheriting from X because of the Iron Curtain Rule.
        i. The Iron Curtain Rule prohibits an illegitimate child from inheriting ab intestate from the legitimate relatives of his ascendant.
    d. Y, G, H & I will all share in the ½ portion left, taking in consideration the 2:1 proportion for full blood and half-blood relations and in case of nephews and nieces inheriting by right of representation.